

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

JERMAINE COOPER,

Plaintiff,

-against-

CITY OF NEW YORK, JOHN NUGENT, JOSE
HERNANDEZ, ENYER TERRERO, BILLY VALERIO,
ANTHONY AMIRALLY, EMRE GUVEN, SUFRAZ
SYED, MICHAEL LESSER, "JANE" BUCKLE, "JOHN"
ESTEVEZ, "JOHN" HERNANDEZ, "JOHN"
MATURINE, "JOHN" SOLER, and JOHN and JANE DOE
1-10,

Defendants.

SUMMONS

Index No.:

The Basis of Venue is:
Location of Incident

Plaintiff designates New York
County as the place of trial.

To the above-named defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with the summons, to serve a notice of appearance, on the plaintiff's attorneys within twenty (20) days after the service of this summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

The nature of this action is, *inter alia*, assault and battery, conspiracy to commit false arrest, false arrest, malicious prosecution, malicious abuse of process, defamation and personal injuries sustained as a result of the defendants' negligence, recklessness and intentional conduct. The relief sought is monetary damages.

Dated: September 10, 2024
New York, New York

ELEFTERAKIS, ELEFTERAKIS & PANEK



By: Michael Gluck, Esq.
Attorneys for Plaintiff
80 Pine Street, 38th Floor
New York, New York 10005
(212) 532-1116

Failure to respond will result in a judgment against you by default and interest from October 26, 2021.

Defendants

CITY OF NEW YORK
100 Church Street
New York, New York
10007

MICHAEL LESSER
314 West 40th Street
New York, New York
10018

JOHN NUGENT
Tax #950962
Intelligence Operations and Analysis Section

"JANE" BUCKLE
20 Manchester Road
Poughkeepsie, New York
12603

JOSE HERNANDEZ
Tax #936756
The Office of the Deputy Commissioner,
Public Information

"JOHN" HERNANDEZ
92-36 Merrick Blvd
Jamaica, New York
11433

ENYER TERRERO
Tax #965562
28th Precinct

"JOHN" MATURINE
314 W 40th Street
New York, New York
10018

BILLY VALERIO
Tax #932054
28th Precinct

EMRE GUVEN
Tax #959679
28th Precinct

ANTHONY AMIRALLY
Tax #939872
28th Precinct

"JOHN" SOLER
314 West 40th Street
New York, New York
10018

SUFRAZ SYED
Tax #956288
23rd Precinct

"JOHN" ESTEVEZ

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

JERMAINE COOPER,

Plaintiff,

-against-

CITY OF NEW YORK, JOHN NUGENT, JOSE
HERNANDEZ, ENYER TERRERO, BILLY VALERIO,
ANTHONY AMIRALLY, EMRE GUVEN, SUFRAZ
SYED, MICHAEL LESSER, "JANE" BUCKLE, "JOHN"
ESTEVEZ, "JOHN" HERNANDEZ, "JOHN"
MATURINE, "JOHN" SOLER, and JOHN and JANE DOE
1-10,

Defendants.

COMPLAINT

Index No.:

Date Filed:

Plaintiff Jermaine Cooper, by his attorneys, ELEFTERAKIS, ELEFTERAKIS & PANEK, as
and for this Verified Complaint, respectfully alleges, upon information and belief:

JURISDICTION AND VENUE

1. One or more of the exceptions of § 1602 of the Civil Practice Law and Rules apply to this action.
2. This action is brought pursuant to the laws of the City and State of New York.
3. Jurisdiction is conferred by the laws of the State of New York and 42 U.S.C. § 1983.
4. Within ninety (90) days after the claim arose, plaintiff served, presented, and duly filed a Notice of Claim, in writing, upon defendant City of New York in accordance with General Municipal Law 50-e, and which set forth the following:
 - a. The nature of the claims;
 - b. The time when, place where, and manner in which the claim arose; and
 - c. The items of damages and injuries sustained.

5. That more than thirty (30) days have elapsed since the presentation of the aforesaid claims, and defendants have neglected and/or refused to make an adjustment and/or payment on plaintiff's claims.

6. Pursuant to G.M.L. § 50-h, the City of New York examined Plaintiff on October 8, 2023.

7. That the action has been commenced within one year of the accrual of the causes of action.

JURY DEMAND

8. Plaintiff demands a trial by jury in this action.

PARTIES

9. Plaintiff Jermaine Cooper is a resident of the State of New York.

10. Defendant City of New York ("City") is a municipal corporation organized under the laws of the State of New York. Defendant City, acting through the New York Police Department ("NYPD"), was responsible for the policy, practice, supervision, implementation, and conduct of all NYPD matters and was responsible for the appointment, training, supervision, discipline and retention and conduct of all NYPD personnel. In addition, at all times here relevant, defendant City was responsible for enforcing the rules of the NYPD, and for ensuring that the NYPD personnel obey applicable law.

11. Defendant Police Officer John Nugent, Shield No. 3901 ("Nugent"), at all times relevant herein, was an officer, employee and agent of the NYPD. Defendant Nugent is sued in his individual and official capacities.

12. Defendant Police Officer Jose Hernandez, Shield No. 4180 ("Hernandez"), at all times relevant herein, was an officer, employee and agent of the NYPD. Defendant Hernandez is sued in his individual and official capacities.

13. Defendant Police Officer Billy Valerio, Shield No. 2511 (“Valerio”), at all times relevant herein, was an officer, employee and agent of the NYPD. Defendant Valerio is sued in his individual and official capacities.

14. Defendant Police Officer Anthony Amirally, Shield No. 7761 (“Amirally”), at all times relevant herein, was an officer, employee and agent of the NYPD. Defendant Amirally is sued in his individual and official capacities.

15. Defendant Police Officer Emre Guven, Shield No. 19460 (“Guven”), at all times relevant herein, was an officer, employee and agent of the NYPD. Defendant Guven is sued in his individual and official capacities.

16. Defendant Police Officer Sufraz Syed, (“Syed”), at all times relevant herein, was an officer, employee and agent of the NYPD. Defendant Syed is sued in his individual and official capacities.

17. Defendant Michael Lesser, (“Lesser”), at all times relevant herein, was an officer, employee and agent of the New York State Department of Corrections and Community Supervision. Defendant Lesser is sued in his individual and official capacities.

18. Defendant "Jane" Buckle, (“Buckle”), at all times relevant herein, was an officer, employee and agent of the New York State Department of Corrections and Community Supervision. Defendant Buckle is sued in her individual and official capacities.

19. Defendant "John" Estevez, (“Estevez”), at all times relevant herein, was an officer, employee and agent of the New York State Department of Corrections and Community Supervision. Defendant Estevez is sued in his individual and official capacities.

20. Defendant "John" Hernandez, (“Hernandez”), at all times relevant herein, was an officer, employee and agent of the New York State Department of Corrections and Community Supervision. Defendant Hernandez is sued in his individual and official capacities.

21. Defendant "John" Maturine, ("Maturine"), at all times relevant herein, was an officer, employee and agent of the New York State Department of Corrections and Community Supervision. Defendant Maturine is sued in his individual and official capacities.

22. Defendant "John" Soler, ("Soler"), at all times relevant herein, was an officer, employee and agent of the New York State Department of Corrections and Community Supervision. Defendant Soler is sued in his individual and official capacities.

23. At all times relevant defendants were Police Officers and/or supervisors and/or Department of Corrections and Community Supervision officers involved in the tortious conduct set forth herein. Relevant defendants are sued in their individual capacity and as employees of defendant City and were acting under color of law.

24. At all times relevant defendants John and Jane Doe 1 through 10 were Police Officers and/or supervisors and/or Department of Corrections and Community Supervision officers involved in the tortious conduct set forth herein. John and Jane Doe 1-10 are sued in their individual and official capacities.

25. At all times relevant herein, all individual defendants were acting in the scope of their employment.

STATEMENT OF FACTS

26. On October 26, 2021, at approximately 10:00 a.m., defendants conducted a search of plaintiff's residence at 1350 Fifth Avenue, Apartment 3B, New York, New York 10026.

27. Defendants recovered contraband, namely, a loaded firearm, ammunition, and narcotics, from inside of a locked room that did not belong to plaintiff and to which plaintiff had no access, dominion or control.

28. Plaintiff was not present in the room at the time of his arrest, nor were any of his personal effects recovered therein.

29. Despite knowing that plaintiff did not exercise dominion or control over the firearm, ammunition, or narcotics, defendants arrested plaintiff, without probable cause, for possession of same and falsely informed members of the New York County District Attorney's office that there was evidence establishing plaintiff's knowledge or control over the contraband.

30. The individual defendants conspired with one another to falsely arrest plaintiff for criminal possession of a firearm and a controlled substance despite the absence of any evidence or basis to support such allegations, and knowledge that such allegations were false.

31. Defendants handcuffed plaintiff and ultimately transported him to the 28th Precinct. Plaintiff was arraigned on October 26, 2021 and bail was set in the amount of \$150,000.

32. As a result of defendants' conspiratorial misconduct and false allegations as described above, plaintiff was incarcerated for approximately twenty months in abhorrent conditions at Rikers Island.

33. On June 12, 2023, following a jury trial at which plaintiff represented himself, plaintiff was acquitted of all charges against him before the Honorable Juan Merchan in New York County Supreme Court.

34. Defendants knowingly and maliciously provided false information to prosecutors indicating, *inter alia*, that plaintiff possessed a loaded firearm, ammunition, and narcotics. Defendants were aware that none of these allegations were true.

35. By reason of the foregoing, plaintiff suffered damage as a result of defendants' actions. Plaintiff suffered, *inter alia*, loss of liberty, pain and suffering, fear, pain, bodily injury, emotional distress, lost wages, damage to his personal and professional reputation, loss of consortium, embarrassment, mental anguish, and anxiety.

FIRST CLAIM**§ 1983 False Arrest against the Individual Defendants**

36. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

37. Defendants violated the Fourth Amendment because they arrested plaintiff without probable cause.

38. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

SECOND CLAIM**§ 1983 Conspiracy to Commit False Arrest against the Individual Defendants**

39. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

40. Defendant Department of Corrections and Community Supervision Officers conspired with defendant Police Officers to arrest plaintiff without probable cause in violation of the Fourth Amendment.

41. As a direct and proximate result of the conspiratorial misconduct and abuse of authority stated above, plaintiff sustained the damages alleged herein.

THIRD CLAIM**§ 1983 Malicious Prosecution against the Individual Defendants**

42. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

43. By their conduct, as described herein, and acting under color of state law, defendants are liable to plaintiff under 42 U.S.C. § 1983 for the violation of his constitutional right to be free from malicious prosecution under the Fourth Amendment to the United States Constitution.

44. Defendants' unlawful actions were done willfully, knowingly, with malice and with the specific intent to deprive plaintiff of his constitutional rights. The prosecution by defendants of plaintiff constituted malicious prosecution in that there was no basis for the plaintiff's arrest, yet defendants continued with the prosecution, which was resolved in plaintiff's favor.

45. As a direct and proximate result of the misconduct and abuse of authority stated above, plaintiff sustained the damages alleged herein.

FOURTH CLAIM

State Law Malicious Prosecution against the City of New York

46. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

47. By their conduct, as described herein, defendants are liable to plaintiff for having committed malicious prosecution under the laws of the State of New York.

48. Defendants maliciously commenced criminal proceeding against plaintiff, charging him with violations of the Penal Law. Defendants falsely and without probable cause charged plaintiff with violations of the laws of the State of New York.

49. The commencement and continuation of the criminal proceedings against plaintiff was malicious and without probable cause.

50. All charges were terminated in plaintiff's favor.

51. Defendants, their officers, agents, servants and employees were responsible for the malicious prosecution of plaintiff. Defendant City of New York, as an employer of the individual defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

52. As a direct and proximate result of the misconduct and abuse of authority stated above, plaintiff sustained the damages alleged herein.

FIFTH CLAIM

§ 1983 Denial of Constitutional Right to Fair Trial against the Individual Defendants

53. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

54. The individual defendants created false evidence against plaintiff.

55. The individual defendants forwarded false evidence to prosecutors in the New York County District Attorney's office.

56. In creating false evidence against plaintiff, and in forwarding false information to prosecutors, the individual defendants violated plaintiff's right to a fair trial under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

57. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

SIXTH CLAIM

Negligence; Negligent Hiring/Training/Retention against the City of New York

58. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

59. Defendant City, through the NYPD, owed a duty of care to plaintiff to prevent the conduct alleged, because under the same or similar circumstances a reasonable, prudent, and careful person should have anticipated that injury to plaintiff or to those in a like situation would probably result from the foregoing conduct.

60. The individual defendants were negligent in their conduct and violated a duty of care owed to plaintiff. The City of New York is responsible under *respondeat superior*.

61. Upon information and belief, all of the individual defendants were unfit and incompetent for their positions.

62. The individual defendants' conduct, including the manner of pursuit and apprehension of plaintiff, was negligent, grossly negligent, reckless and intentional.

63. Upon information and belief, defendants City knew or should have known through the exercise of reasonable diligence that the individual defendants who were their employees were potentially dangerous.

64. Upon information and belief, defendant City negligence in screening, hiring, training, disciplining, and retaining these defendants and the individual defendants' own negligence proximately caused each of plaintiff's injuries.

65. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

SEVENTH CLAIM

Negligent or Intentional Infliction of Emotional Distress against the City of New York

66. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

67. By reason of the foregoing, the defendants, acting in their capacities as NYPD and Department of Corrections and Community Supervision Officers, and within the scope of their employment, were negligent (or intentional) in committing conduct that inflicted emotional distress upon plaintiff.

68. The negligent (or intentional) infliction of emotional distress by these defendants was unnecessary and unwarranted in the performance of their duties.

69. Defendants, their officers, agents, servants, and employees were responsible for the negligent (or intentional) infliction of emotional distress upon plaintiff. Defendant City, as employer of the NYPD officer defendants, are responsible for their wrongdoings under the doctrine of *respondeat superior*. The remaining defendants are likewise responsible for their own conduct.

70. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

EIGHTH CLAIM

§ 1983 Failure to Intervene against the Individual Defendants

71. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

72. Those defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.

73. Accordingly, the defendants who failed to intervene violated the Fourth, Fifth, Sixth and Fourteenth Amendments.

NINTH CLAIM
Violation of Plaintiff's 8-803 Rights

74. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

75. The actions of defendants violated plaintiff's rights as defined in Section 8-802 of Chapter 8 of the New York City Administrative Code.

76. As such, immunity is not a defense to the violations of plaintiff's rights and plaintiff demands and is entitled to the relief described in Section 8-805.

77. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

PRAYER FOR RELIEF

WHEREFORE, plaintiff respectfully requests judgment for an amount which exceeds the jurisdictional limits of all other Courts which would otherwise have jurisdiction herein against defendants as follows:

- (a) Compensatory damages against all defendants, jointly and severally;
- (b) Punitive damages against the individual defendants, jointly and severally;
- (c) Reasonable attorneys' fees and costs, and with interest from the date of the incident;
- (d) All relief afforded under Section 8-805 of Chapter 8 of the New York City Administrative Code; and
- (e) Such other and further relief as this Court deems just and proper.

Dated: September 10, 2024
New York, New York

ELEFTERAKIS, ELEFTERAKIS & PANEK



By: Michael Gluck, Esq.
Attorneys for Plaintiff
80 Pine Street, 38th Floor
New York, New York 10005
(212) 532-1116